

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                           |                                                        |                                    |                                 |
|--------------------------------------------------|-------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Jayvee Rhoda                    | Team:<br>Squad #8                   | CCRB Case #:<br>201510764 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                           | <input checked="" type="checkbox"/> Abuse              | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 12/11/2015 1:00 PM   | Location of Incident:<br>§ 87(2)(b) | Precinct:<br>77           | 18 Mo. SOL<br>6/11/2017                                | EO SOL<br>6/11/2017                |                                 |
| Date/Time CV Reported<br>Tue, 12/15/2015 1:27 PM | CV Reported At:<br>IAB              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 12/23/2015 11:08 AM |                                    |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Subject Officer(s)   | Shield | TaxID  | Command |
|----------------------|--------|--------|---------|
| 1. POM John Vera     | 31683  | 933452 | 077 PCT |
| 2. POM Roman Goris   | 14772  | 947042 | 077 PCT |
| 3. POM Pierre Joseph | 23157  | 957720 | 077 PCT |

| Witness Officer(s)  | Shield No | Tax No | Cmd Name |
|---------------------|-----------|--------|----------|
| 1. POM Winghong Lau | 24578     | 942041 | 077 PCT  |
| 2. POM Dave Behal   | 17027     | 957370 | 077 PCT  |

| Officer(s)          | Allegation                                                        | Investigator Recommendation |
|---------------------|-------------------------------------------------------------------|-----------------------------|
| A.POM Roman Goris   | Abuse: PO Roman Goris refused to provide his name to § 87(2)(b)   | § 87(2)(b)                  |
| B.POM Pierre Joseph | Abuse: PO Pierre Joseph refused to provide his name to § 87(2)(b) | § 87(2)(b)                  |
| C.POM John Vera     | Abuse: PO John Vera refused to provide his name to § 87(2)(b)     | § 87(2)(b)                  |

### Case Summary

On December 15, 2015, § 87(2)(b) filed this complaint with IAB via telephone. The CCRB received IAB log number 15-39507 on December 23, 2015.

On December 30, 2015, a call was placed to § 87(2)(b) who stated that he was not interested in either mediation or investigation. § 87(2)(b)'s withdrawal is located in IA # 12 at the 19:25 mark. § 87(2)(b) stated that his main concern is that he wants to regain access to his building. § 87(2)(b) understood that the CCRB has no jurisdiction over this aspect of his complaint § 87(2)(g)

§ 87(2)(b) confirmed that he is voluntarily withdrawing his complaint and he was not coerced by the CCRB or the NYPD to withdraw. On December 30, 2015, a withdrawal letter was mailed to § 87(2)(b) and will be added to the case file upon receipt. IM Vanessa Rosen reviewed the recorded withdrawal and confirmed that it adhered to the CCRB policy.

§ 87(2)(g)

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Squad: 8

Investigator: \_\_\_\_\_  
Signature Print Date

Pod Leader: \_\_\_\_\_  
Title/Signature Print Date

Attorney: \_\_\_\_\_  
Title/Signature Print Date